

DRAFT JURY CHARGE

Weinstein v. Copeland, Cause No. 141-370402-25

INTRODUCTION

Members of the jury, you have heard all the evidence in this case. It is now your duty to decide the facts from the evidence presented. You must follow the law as stated in these instructions and apply it to the facts as you find them.

BURDEN OF PROOF

The party who seeks relief has the burden of proving each element of their claim by a preponderance of the evidence. “Preponderance of the evidence” means the greater weight of credible evidence. It means that evidence which is more convincing to you than the opposing evidence.

QUESTION 1: FAIR HOUSING ACT - FAILURE TO PROVIDE REASONABLE ACCOMMODATION

Did Plaintiffs fail to provide a reasonable accommodation to Defendant’ s disability as required by the Fair Housing Act?

To answer “Yes” to this question, you must find that Defendant proved each of the following by a preponderance of the evidence:

1. Defendant has a disability within the meaning of the Fair Housing Act
2. Plaintiffs knew or should have known of Defendant’ s disability

3. An accommodation in Plaintiffs' rules, policies, practices, or services was necessary to afford Defendant an equal opportunity to use and enjoy the dwelling
4. The requested accommodation was reasonable
5. Plaintiffs refused to make the requested accommodation

Answer: Yes _____ No _____

QUESTION 2: FAIR HOUSING ACT - RETALIATION

Did Plaintiffs retaliate against Defendant for exercising rights protected by the Fair Housing Act?

To answer "Yes" to this question, you must find that Defendant proved each of the following by a preponderance of the evidence:

1. Defendant engaged in activity protected by the Fair Housing Act (such as requesting a reasonable accommodation)
2. Plaintiffs took an adverse action against Defendant (such as nonrenewal of lease)
3. There was a causal connection between the protected activity and the adverse action

Answer: Yes _____ No _____

QUESTION 3: TEXAS PROPERTY CODE § 92.331 - RETALIATION

Did Plaintiffs retaliate against Defendant in violation of Texas Property Code § 92.331?

To answer "Yes" to this question, you must find that Defendant proved each of the following by a preponderance of the evidence:

1. Defendant made a complaint to Plaintiffs about conditions materially affecting the physical health or safety of an ordinary tenant

2. Plaintiffs took retaliatory action (such as terminating the lease) within six months of the complaint
3. The retaliatory action was taken because of Defendant' s complaint

Note: Texas law creates a rebuttable presumption that action taken within six months of a complaint is retaliatory. Plaintiffs may rebut this presumption by proving the action was taken in good faith for another reason.

Answer: Yes _____ No _____

QUESTION 4: UNLAWFUL RETENTION OF PROPERTY

Did Plaintiffs unlawfully retain Defendant' s personal property?

To answer “Yes” to this question, you must find that Defendant proved each of the following by a preponderance of the evidence:

1. Defendant owned personal property located at the premises
2. Plaintiffs removed and retained Defendant' s personal property
3. Plaintiffs did not have legal authority to remove and retain the property
4. Defendant made demand for return of the property
5. Plaintiffs refused to return the property

Answer: Yes _____ No _____

QUESTION 5: ACTUAL DAMAGES - DISPLACEMENT EXPENSES

If you answered “Yes” to any of Questions 1-4, what sum of money, if any, would fairly and reasonably compensate Defendant for displacement expenses (hotel costs, storage, meals, transportation) incurred as a result of Plaintiffs' conduct?

Consider the following:

- Duration of displacement (June 18, 2025 - present)

- Reasonable daily cost of temporary housing, meals, and related expenses
- Evidence of actual expenses incurred

Answer: \$_____

QUESTION 6: ACTUAL DAMAGES - MEDICAL EQUIPMENT AND PERSONAL PROPERTY

If you answered “Yes” to Question 4, what sum of money, if any, would fairly and reasonably compensate Defendant for the value of medical equipment and personal property unlawfully retained by Plaintiffs?

Consider the following:

- Replacement cost of medical equipment necessary for disability management
- Value of personal property removed and not returned
- Evidence of actual value

Answer: \$_____

QUESTION 7: EMOTIONAL DISTRESS DAMAGES

If you answered “Yes” to any of Questions 1-4, what sum of money, if any, would fairly and reasonably compensate Defendant for mental anguish, emotional distress, and suffering caused by Plaintiffs’ conduct?

Consider the following:

- Nature and severity of emotional distress
- Duration of emotional distress
- Impact on daily life and functioning
- Medical evidence of emotional harm
- Exacerbation of existing medical conditions

Answer: \$ _____

QUESTION 8: PUNITIVE DAMAGES (Fair Housing Act Claims)

If you answered “Yes” to Question 1 or Question 2, do you find by a preponderance of the evidence that Plaintiffs’ conduct was intentional discrimination or retaliation?

Answer: Yes _____ No _____

If you answered “Yes” above, what sum of money, if any, should be assessed against Plaintiffs as punitive damages?

In determining the amount of punitive damages, if any, you may consider:

- The nature of the wrong
- The character of the conduct involved
- The degree of culpability of Plaintiffs
- The situation and sensibilities of the parties concerned
- The extent to which such conduct offends a public sense of justice and propriety

Answer: \$ _____

DEFINITIONS

Disability: A physical or mental impairment that substantially limits one or more major life activities, a record of such an impairment, or being regarded as having such an impairment.

Major Life Activities: Include, but are not limited to, caring for oneself, performing manual tasks, seeing, hearing, eating, sleeping, walking, standing, lifting, bending, speaking, breathing, learning, reading, concentrating, thinking, communicating, and working.

Reasonable Accommodation: A change, exception, or adjustment to a rule, policy, practice, or service that may be necessary for a person with a disability to have an equal opportunity to use and enjoy a dwelling.

Protected Activity: Actions taken to exercise rights under the Fair Housing Act, including but not limited to: requesting reasonable accommodations, filing complaints about housing discrimination, or notifying landlords of violations of fair housing laws.

Retaliation: Taking adverse action against a person because they engaged in protected activity under the Fair Housing Act or Texas Property Code.

Adverse Action: Actions that would deter a reasonable person from exercising their fair housing rights, including but not limited to: refusing to renew a lease, eviction, harassment, or interference with tenancy rights.

CONCLUDING INSTRUCTIONS

You must answer the questions in order. If you answer “No” to Questions 1, 2, 3, and 4, do not answer the remaining questions.

Your answers must be based solely on the evidence presented during trial and the law as instructed by the Court.

All answers must be agreed upon by at least 10 of the 12 jurors.

EVIDENCE SUMMARY FOR JURY CONSIDERATION

Undisputed Documentary Evidence:

Disability Status:

- Dr. Isabel Huang letter (Sept 10, 2025): Diagnosed conditions including hEDS, POTS, MCAS
- Dr. Kim Tran letter (Sept 11, 2025): Detailed symptom list and impact of housing instability
- Medical records documenting ongoing treatment

Habitability & Accommodation Requests:

- BioTex report (June 18, 2025): Unit declared “unfit for human occupancy”
- Dallas Mold Consulting reports (Sept 8, 2025): Documented contamination and protocol violations
- Multiple accommodation requests (June 27, July 23, Aug 14, 2025)
- Sept 18, 2025: Omni hotel accommodation request

Retaliation Timeline:

- Aug 14, 2025: FHA accommodation notice sent (PROTECTED ACTIVITY)
- Aug 26, 2025: Nonrenewal notice sent (ADVERSE ACTION - 12 days later)
- Sept 19, 2025: Eviction lawsuit filed
- Sept 22, 2025: Property seized without notice

Ongoing Violations:

- Oct 20, 2025: Plaintiffs’ pleading admits “remediation continues”
- Dec 4, 2025: Photo shows “MOLD REMEDIATION IN PROGRESS - DO NOT ENTER” notice still posted
- 169 days of displacement (June 18 - Dec 4, 2025)

Property Retention:

- Medical equipment removed Sept 22, 2025
- Multiple demands for return (Sept 29 Emergency Motion, ongoing requests)
- Refusal to return or provide access

Plaintiffs’ Sophistication:

- Multi-Housing News featured landlord (2019)
 - Corporate entity with registered agent
 - Experienced legal counsel
 - Knowledge of FHA/ADA obligations (Equal Housing logo on materials)
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WHY THIS JURY CHARGE MATTERS

For the Court's Consideration:

If the answers to Questions 1-4 are clearly “Yes” based on undisputed documentary evidence, and the damages calculations in Questions 5-7 can be determined from documented expenses without credibility determinations, **what purpose would a jury trial serve?**

The Fair Housing Act and Texas Property Code impose **mandatory duties** on landlords. When:

- Disability is documented by medical professionals
- Accommodation requests are in writing with dates and specifics
- Retaliation timeline is established by dated documents (12 days)
- Property seizure is admitted in pleadings
- Ongoing uninhabitability is proven by photos and expert reports

...then the Court can answer these jury questions **as a matter of law** based on undisputed facts.

This is why Defendant requests ministerial relief rather than trial.

The law is clear. The facts are undisputed. The jury charge writes itself.

This draft jury charge is provided to demonstrate that the legal and factual issues in this case are suitable for summary resolution based on undisputed documentary evidence, supporting Defendant's request for ministerial relief without the need for an evidentiary hearing or jury trial.